IN THE DISTREICT COURT SITTING AT TWIFO PRASO, CENTRAL REGION ON MONDAY THE 12TH DAY OF MAY, 2025 BEFORE HIS WORSHIP MAXWELL OFORI KPODO, ESQ

SUIT CASE NO. A2/170/2021

ADJEI BOATENG **PLAINTIFF**

VRS

KWEKU ADDAE **DEFENDANT**

JUDGMENT

INTRODUCTION

The Plaintiff, Adjei Boateng, has initiated this action against the Defendant, Bismarck Kweku Addai, seeking an order for the Defendant to account for proceeds from the sale of fertilizer and for the payment of outstanding sums allegedly owed to the Plaintiff. The dispute centers around the sale of 700 bags of fertilizer, which were stored in the Defendant's premises and sold under an arrangement between the parties. The Plaintiff claims that after selling a substantial quantity of the fertilizer, the Defendant failed to fully account for the proceeds, while the Defendant denies the claim and asserts that the Plaintiff collected fertilizer at various times without proper documentation.

PLAINTIFF'S CASE

He Plaintiff, Adjei Boateng, was the District Officer of Olam Ghana Co. Ltd, a cocoa purchasing company operating in Twifo Praso. On or about the 7th of November 2018, he took delivery of 700 bags of fertilizer intended for sale. Upon arrival in Twifo Praso, the Defendant, Bismarck Kwaku Addai—a marketing clerk and long-time acquaintance—offered to store the fertilizer in one of his cocoa sheds at no cost. Due to the Defendant's own cocoa sacks being stored in the same shed, he retained possession of the keys, and it was mutually agreed that fertilizers would only be released upon the presentation of receipts issued by the Plaintiff. Eventually, for convenience and to avoid future disputes, the Plaintiff left all the keys with the Defendant.

The Defendant later expressed interest in assisting with the sale of the fertilizer. They agreed on a selling price of GH¢ 80.00 per bag. While the Plaintiff directly sold 354 bags and accounted for proceeds amounting to GH¢ 28,320, the Defendant sold 346 bags. However, out of the expected GH¢ 27,680 from the Defendant's sales, the Plaintiff received only GH¢ 9,710. The outstanding balance of GH¢ 17,970 remains unaccounted for despite repeated demands by the Plaintiff for a proper account. This claim by the Plaintiff was supported by exhibits c series, which are receipts the Plaintiff claim to have issued to the Defendant as evidence of payment received from the Defendant for the sales of the fertilizers.

The Plaintiff also stated that the Defendant had earlier suggested distributing 400 bags of the fertilizer to farmers on credit—a proposal he rejected. Nonetheless, he later discovered that the Defendant had already gone ahead and distributed the fertilizers on credit without his approval. Feeling aggrieved by the Defendant's failure to render proper accounts and recover the outstanding amount, the Plaintiff instituted the present legal action to recover the sum of GH¢17,970.

DEFENDANT'S CASE

The Defendant, Bismarck Kwaku Addai, denied the Plaintiff's claims. He admitted that the Plaintiff sought his assistance in securing a place to store the fertilizer and that he provided a storage facility. However, he contended that there was an agreement between them that both parties would be involved in selling the fertilizer.

He further stated that he allowed the Plaintiff to store the fertilizer in his facility without any rental charges. According to the Defendant, the Plaintiff had full access to the storage and often came with trucks to transport fertilizers away without notifying him of the exact quantity removed.

The Defendant further stated that he had asked Kwesi Baako to handle some of the sales on his behalf.

He maintained that he provided an account of sales made, with all proceeds handled by Baako. The Defendant also alleged that a portion of the fertilizer was sold on credit to a farmer with the Plaintiff's knowledge, and when payments were made, the amounts were remitted to the Plaintiff.

Additionally, the Defendant claimed that the Plaintiff had promised to compensate him from the proceeds but failed to do so. He argued that the Plaintiff never conducted a proper reconciliation of the number of bags sold and collected, leading to the current dispute.

DEFENDANT'S WITNESS (AKWASI BAAKO)

Akwasi Baako, a mason and an acquaintance of both parties, testified as a witness for the Defendant. He stated that he frequently visited the Defendant's workplace and observed

that the Plaintiff's fertilizer was stored there. He confirmed that he was involved in receiving money from buyers and handing it over to the Plaintiff.

Baako testified that the Plaintiff personally collected bags of fertilizer from the store on multiple occasions without keeping a proper record. He also stated that there was no formal documentation of the transactions and that the Plaintiff never maintained a ledger of sales and collections. Baako maintained that the Plaintiff was fully aware of the sales and had received all proceeds that had been accounted for.

The following issues were identified by the court.

1. Whether or not the Plaintiff had requisite capacity to sue

2. Whether or not some of the Plaintiff's exhibits were forged

3. Whether or not the Plaintiff stored 700 bags of fertilizer into the Defendants storage.

4. Whether or not Plaintiff had independent or unrestricted access to the storage

BURDEN OF PROOF

In all civil suits such as the instant action, the primary burden of proof, that is, the duty of producing evidence in support of averments necessary for the Court to deliver a favourable decision, rests upon the party who made the averment. The primary burden of proof is usually on the Plaintiff because she made the primary averments when she instituted the action. Under certain circumstances, this burden may shift to the Defendant to open the trial by the adduction of evidence as was noted by Date-Ba, JSC in the case of **Sumaila Bielbiel Vrs. Adamu Dramani & AG (No.3) [2012] 1 SCGLR 370***:*

"Ordinarily, the burden of persuasion lies on the same party as bears the burden of producing evidence. However, depending upon the pleadings or what facts are admitted, the evidential burden can move on to a Defendant. The cumulation on the Defendant of the evidential burden on the issues to be tried in a case can result in the right to open the case shifting to the Defendant."

However, where the Plaintiff adduces sufficient evidence in the discharge of the primary burden, the onus then shifts under Section 14 of Act 323 onto the Defendant, who under Section 10 (2) of Act 323, is required to adduce sufficient evidence in rebuttal, to avoid a ruling against him on the particular issue as was held in **Faibi Vrs. State Hotels Corporation [1968] GLR 471**. **Section Act 323** provides that:

"14. Except as otherwise provided by law, unless it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defense that party is asserting."

In the case of **Birimpong Vrs. Bawuah [1994-95] GBR 837,** the Court held that in any action where a Defendant has a counterclaim, the same primary burden of proof, and standard of proof are placed on him as it is with the Plaintiff**.**

The obligation of the party making the averment or an allegation of fact essential to the success of his case is two-fold. The first is the production of evidence in proof of the averment, as required by Sections 11(1) and 14 of the Evidence Act, 1975 (N.R.C.D 323) and second the production of evidence to meet the standard of proof under Section 10(1) of NRCD 323.

Firstly, that burden may be discharged by adduction of evidence by the Plaintiff himself or by his witness (es). In the case of **NDC Vrs. Electoral Commission [2001- 2002] SCGLR 954**, the Supreme Court in dismissing the case of the Plaintiff for their inability

to adduce evidence in proof of their allegations, Wiredu Ag. CJ held that *"…To allege that a person has breached the constitutional provision requires the production of sufficient, cogent and clear evidence to support the allegation. Unfortunately, what we have before us from both sides cannot be said to be sufficient, clear and cogent."*

Secondly, the burden of producing evidence may be discharged if the averment made by the Plaintiff or Defendant-counterclaimant, is admitted by the opponent. In **West African Enterprise Ltd Vrs. Western Hardwood Enterprise Ltd [1995-96] 1 GLR., CA**, it was held (in holding 3),

"*...no principle of law required a party to prove an admitted fact.''*

Thirdly, the burden of proof may be discharged by evidence from the mouth of an opponent or his witness. In **Nyame Vrs. Tawiah & Anor [1979] GLR 265, C.A (Full Bench),** it was held:

"A party could prove his case by admissions from the mouth of his opponent or his adversary's witness...''

The second leg of the obligation on the averrer is to ensure that the evidence adduced meets the standard of proof set by the law. The evidence must be sufficiently cogent in persuading the trier of fact under section 10 (1), Act 323, of the existence of the fact alleged. **Section 10 of the Evidence Act, 1975 (Act 323**) also states:

"10. (1) For the purposes of this Act, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the Court.

(2) The burden of persuasion may require a party.

(a) To raise a reasonable doubt concerning the existence or non-existence of a fact, or

(b) To establish the existence or non-existence of a fact by a preponderance of the probabilities or by proof beyond a reasonable doubt."

In the case of **Dzaisu and Others Vrs. Ghana Breweries Limited [2007-2008]1 SCGLR 539** at p.545, the Supreme Court per Adinyira JSC., stated as follows: *"It is a basic principle in the law of evidence that the burden of persuasion on proving all facts essential to any claim lies on whosoever is making the claim."*

The test applied by the Court in determining whether the evidence adduced was persuasive, is "*proof by a preponderance of probabilities''*, under **Section 12 of Act 323**:

"12. Proof by a Preponderance of Probabilities

(1) Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities.

(2) "Preponderance of the probabilities" means the degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more probable than its non-existence."

The effect of Sections 11, 12 and 14 of Act 323 as well as the principles enunciated under case law by the Superior Courts is that a party whose pleadings raise an issue which is essential to the success of his case has the burden of adducing sufficient evidence in proof of that issue. The burden only shifted to the Defendant when the Plaintiff has succeeded in the discharge of that burden.

LEGAL ANALYSIS AND OPINION

I shall now discuss the issues in turns.

1. Whether or not the Plaintiff had requisite capacity to sue

With respect to the issue of legal capacity, learned Counsel for the Defendant raised a preliminary objection by way of an application on notice, challenging the Plaintiff's standing to institute this action. Upon reviewing the evidence, the Court held that the Plaintiff engaged with the Defendant in his personal capacity and assumed direct responsibility for the fertilizers supplied. Accordingly, the Court found that the Plaintiff has both the legal capacity and locus standing to pursue this action against the Defendant.

In light of this finding, the Court dismissed the Defendant's application, affirming that the Plaintiff possesses the requisite legal capacity to bring and maintain this action in his personal name. The Court still maintains the same position and view, reaffirming its earlier determination on this issue.

2. Whether or not some of the Plaintiffs exhibits were forged

On the issue of forgery raised by learned Counsel for the Defendant in his written address, this Court has carefully considered the case presented by both parties, with particular attention to the exhibits tendered by the Plaintiff in support of his claim. It is noteworthy that these exhibits were admitted into evidence without objection at the time of tendering and, therefore, form part of the record. However, the Court observes that the Plaintiff's claim includes a receipts particularly exhibit c which the Defendant now alleges to be forged.

Counsel for the Defendant alleged that Exhibit C, a receipt which originally bore the inscription "PCB" but had that name manually crossed out and replaced with "Sunshine Commodities," was a forged document. This Court has given careful consideration to the allegation, guided by both statutory and judicial authorities governing the proof of forgery in civil proceedings.

It is trite law that in civil cases, where a party alleges the commission of a criminal offence such as forgery, the standard of proof is not on a balance of probabilities but rather **beyond reasonable doubt**, as required in criminal trials. This principle is firmly grounded in section 13(1) of the **Evidence Act, 1975 (NRCD 323)**, which provides:

"In any civil or criminal proceeding, the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond a reasonable doubt."

This position was emphatically restated by the Supreme Court in **Sasu Bamfo v. Simtim** [2012] 1 SCGLR 136 at 138, where it was held:

"The law regarding proof of forgery or any allegation of a criminal act in a civil trial is governed by section 13(1) of the Evidence Act, 1975 (NRCD 323); that section provides that the burden of persuasion required is proof beyond a reasonable doubt…"

In **Rabbles v. The State** [1964] GLR 580, the Court of Appeal elaborated on what constitutes the offence of forgery under Ghanaian law:

"Mere falsification of a document does not constitute the crime of forgery. Under our Code, sections 159 and 164, falsification or alteration of a document can only constitute the offence of forgery if it is done with one or other of the intents mentioned in the said sections 159 and 164. The intent relied upon by the prosecution in the present case… is to defraud. Therefore, in order to convict, the court must be satisfied beyond reasonable

doubt that the object or purpose with which the alteration or falsification was made is to defraud."

This was further emphasized in **Okyere & Another v. The Republic** [2001–2002] 1 GLR 423, where it was held that:

"The definitions of the offence of forgery in sections 159 and 164(a) of the Criminal Code, 1960 (Act 29) indicated that two alternative intents were contemplated—i.e., intent to defraud and an intent to deceive—and the presence of either of them could constitute forgery. Accordingly, it was necessary for the prosecution in a charge of forgery to prove that the accused made or altered the document with intent that it would be accepted as genuine, knowing that someone was likely to act upon it to the prejudice of someone else."

Additionally, by way of persuasive authority, the Nigerian Supreme Court in **APC v. PDP** (2015) ALL FWLR (Pt. 791) 1493, laid down an evidential requirement that:

"To prove forgery or that a document is forged, two documents must be produced: (1) the document from which the forgery was made, and (2) the forgery or the forged document…"

Applying these legal principles to the facts of this case, the Court finds that although the Defendant, through Counsel, alleged that Exhibit C was forged, no credible or cogent evidence was led in support of that serious allegation. No original version of the alleged forged document was tendered for comparative analysis, as required in *APC v. PDP*. The Defendant did not call any witness—expert or otherwise—nor did he present any documentary evidence or forensic proof demonstrating that Exhibit C was not authentic.

The allegation was merely raised in cross-examination and repeated in Counsel's final address. However, this Court must reiterate that **suggestions made in cross-examination do not amount to proof**, and **submissions in Counsel's address cannot take the place of evidence**. More importantly, Exhibit C was admitted into evidence **without objection at the time of tendering**, thereby forming part of the trial record. The Plaintiff gave consistent and credible testimony and relied on documents properly admitted during trial, including Exhibit C.

In light of the totality of the evidence and the legal principles outlined above, this Court finds that the Defendant has failed to discharge the burden of proving forgery beyond reasonable doubt. There is no legal or evidential basis to reject Exhibit C. Accordingly, this Court rejects the Defendant's allegation of forgery and holds that Exhibit C is a genuine document. The Court, therefore, accords it full evidential weight and considers it in support of the Plaintiff's claim.

3. Whether or not the Plaintiff stored 700 bags of fertilizer into the Defendants storage.

It is not in dispute that the Plaintiff stored his fertilizer at the Defendant's premises. However, the Defendant now claims that he did not know the exact number of bags stored, arguing that he was not involved in counting them during delivery.

This claim, however is untenable, the records clearly show that the Defendant was present when the fertilizer was delivered and even took part in the storage process. His suggestion that he was unaware of the quantity stored doesn't hold up against the evidence.

To support his case, the Plaintiff presented a waybill marked as Exhibit A, which confirms the delivery of 700 bags of fertilizer. As per the rules of evidence, documentary proof like a waybill generally carries more weight than mere verbal denials—unless there is strong

evidence to discredit it. In this case, the Defendant has not provided such evidence. I therefore hold that the Plaintiff stored 700 bags of fertilizer at the Defendant's storage.

4. Whether or not Plaintiff had independent or unrestricted access to the storage

The Plaintiff testified that he handed over the warehouse keys to the Defendant, with clear instructions that if someone wants to buy some of the fertilizer, He will issue receipts which will be presented to the Defendant to give out the fertilizer to the bearer of the receipt.

This arrangement is confirmed in **paragraph 4** of the Plaintiff's witness statement and backed by Exhibit B, which includes copies of the actual receipts.

Interestingly, the Defendant himself admitted in **paragraph 13** of his own witness statement that he was indeed given the keys to the storage by the Plaintiff after the fertilizer was stored in the container. This admission leaves little doubt that the Defendant had full control over access to the fertilizer.

The Defendant later alleged that approximately a week after the delivery of the bags of fertilizer to his warehouse, the Plaintiff returned and requested the keys to retrieve some bags of fertilizer, and that he handed the keys over without objection. However, this claim was vehemently denied by the Plaintiff, who maintained that the keys remained with the Defendant at all material times.

The burden of proof lies on the Defendant to prove that the Plaintiff did, in fact, return a week later to collect the storage keys—particularly since the Defendant had earlier admitted, in line with Plaintiff's account, that he was the one originally entrusted with keeping the keys.

In view of the Defendant's earlier admission, the evidential burden shifts to him to establish the truth of his subsequent assertion, which the Plaintiff has categorically denied. In the absence of credible and compelling evidence, the Court is entitled to treat the Defendant's claim as unsubstantiated and reject it accordingly."

This is what transpired on 20th September, 2023 when the Defendant was under **cross-examination**:

- **Q:** For all the time that the Plaintiff's fertilizer were in your shop, you or your representative, Kweku Baako, had the keys, to the shop is that right.
- **A:** That is not true.
- **Q:** So who kept the keys to the place where the fertilizer were kept
- **A:** Adjei Boateng had one of the keys, and I also had one of the keys.

DW1 (Kweku Baako) Under cross-examination on 6th August, 2024, DW1 testified as follows:

- **Q:** Who kept the keys to the storage place or store to the fertilizer.
- **A:** There were **3 keys** and it was distributed to the 3 of us which is the **Plaintiff, Defendant, and myself.**

From the above discourse, it is clear that the Defendant, during cross-examination, denied that his representative, DW1, had possession of the keys to the storage facility. However, this denial was directly contradicted by DW1 himself, who, under cross-examination, admitted to holding one of the keys and clarified that there were actually three keys in total. This inconsistency significantly undermines the credibility of both the Defendant and his witness, reinforcing the conclusion that their testimonies have not been entirely truthful.

The Court finds the Defendant's credibility to be significantly undermined by the inconsistencies in his own account. He initially admitted that he was given the keys to the storage facility, yet later claimed that the Plaintiff returned a week later to collect them—a claim the Plaintiff has flatly denied. The evidential burden therefore rests on the Defendant to substantiate this new assertion, and in the absence of credible evidence, the Court is entitled to reject it as unproven. Moreover, the Defendant's own statement in paragraph 28 of his witness statement, in which he alleges that the Plaintiff would sometimes come with a Kia truck to load fertilizer without informing him of the quantities taken, is vague, self-serving, and unsupported by any independent evidence. If, as the Defendant now wants the Court to believe, the Plaintiff truly had a spare key of his own, it is unclear why he would ever need to ask the Defendant for access. This contradiction further weakens the Defendant's story and makes it difficult for the Court to place any meaningful weight on his testimony. In contrast, the Plaintiff's account is consistent, coherent, and far more plausible in the circumstances.

Further reinforcing this conclusion is the Defendant's own admission in paragraph 30 of his witness statement, where he states that whenever the Plaintiff came to collect fertilizer, it was always in the presence of DW1, and that the two of them would assist in packing the bags. This clearly shows that the Defendant and DW1 maintained control over the storage facility and were present during each retrieval. It significantly undermines any suggestion that the Plaintiff had independent or unrestricted access. On the strength of the evidence and for the reasons outlined above, I find as a fact that the Plaintiff did not have independent access to the storage facility. I therefore hold that, at all material times, the Defendant and his representative were the ones who exercised exclusive control over the storage.

3. Whether or not the Defendant sold some of the fertilizers stored at the storage by the Plaintiff.

While the Defendant, in his evidence-in-chief, admitted to selling some of the fertilizers and stated that he rendered an account to the Plaintiff's representative, he unequivocally denied ever selling any fertilizer when confronted during cross-examination on 20th September 2023.This is what transpired.

Q: So you sold some of the fertilizer yourself, and Baako also sold some on your behalf. Is that right

A: I did not sell some.

However, when confronted with paragraph 18 of his own **witness statement**, which forms part of his **evidence-in-chief**, he had no choice but to admit the truth.

This is what transpired on 20th September, 2023.

Q: I am putting it to you that your answer you just gave is false because by paragraph 18 of your witness statement, Akwesi Baako sells the fertilizer in your absence, but when you are around, you sell it yourself.

A: That is true.

The foregoing clearly establishes that the Defendant made a deliberate attempt to mislead the court on key issues. His initial denial, followed by an eventual admission during cross-examination, reveals a significant inconsistency in his story. Under the rules of evidence, such contradictions seriously undermine his credibility.

The Defendant further contradicted himself about whether Baako ever provided any records or account of the fertilizer sales. During cross-examination, the following exchange took place: on 20th September 2023

Q: It is your case that Baako rendered account of the sale of the fertilizer to the Plaintiff. Is that correct

A: That is not my case, we never had conference with the Plaintiff.

However, paragraph 20 of the Defendant's **witness statement**, which was tendered as evidence, reads as follows:

"It was therefore Kwesi Baako who rendered account of the sale that myself and Baako made of the fertilizer to the Plaintiff, as I had asked Baako to keep all the amount realized from the sale of the fertilizer that was made."

When this clear contradiction was pointed out to him by counsel for the Plaintiff during cross examination, the Defendant tried to backtrack on his earlier statement.

This is what transpired on 20th September, 2023 under cross examination of the Defendant by the counsel for the Plaintiff.

Q: So your statement in paragraph 20 of your witness statement, which reads, *"It was therefore Kwesi Baako who rendered account of the sales that myself and Baako made of the fertilizer to the Plaintiff, and I asked Baako to keep all the amount realized from the sale of the fertilizer that was made," is false?*
A: That is not true.

By directly contradicting his own sworn statement, the Defendant seriously undermined his credibility, and the Court must, therefore, approach his testimony with the utmost

circumspection. It is trite law that a party cannot approbate and reprobate. One cannot, in the same breath, affirm and deny the same material fact. The law does not permit a litigant to assert a position and then, when it becomes inconvenient, disavow it—particularly when confronted with their own prior statements."

The inconsistencies in the Defendant's testimony are further compounded by the glaring contradictions between his own evidence and that of his witness, DW1 (Kwesi Baako). In paragraph 10 of DW1's witness statement, he unequivocally stated:

"The Defendant gave me the amount realized from the bags of fertilizer sold by him."

This statement directly contradicts the Defendant's claim that he never sold any fertilizer, presenting a serious inconsistency in the evidence. During cross-examination on 6th August, 2024, DW1 was confronted with this inconsistency, as follows:

Q: While you sold some of the fertilizer, the Defendant also sold some. Is that not so

A: No, my Lord.

Q: From your answer just given, your statement at paragraph 10 of your witness statement is either false, or your previous answer is false.

A: Kweku Addai (Defendant) has not given me any money paid from the sale of the fertilizer.

This exchange exposes a clear contradiction between DW1's written statement and his oral testimony, as well as between his testimony and the Defendant's assertions. While DW1 initially indicated that the Defendant had provided him with the proceeds from the sale, he later denied receiving any such payment during cross-examination, undermining his credibility. This contradiction between the statements of the Defendant and DW1, as

well as the shifting testimony from DW1 himself, severely detracts from the reliability of their evidence. It further suggests that the Defendant and his witness have attempted to mislead the court, rendering their claims both unsubstantiated and unworthy of belief.

In *Atadzi v. Ladzekpo* [1981] GLR 218, the Court of Appeal held that "whenever the testimony of a party on a material issue is in conflict with the testimony of his witness, it is not open to the court to gloss over such a conflict."

Similarly, in *Obeng v. Bempomaa* (1992-93) GBR 1027, the Court held: "Inconsistencies … may cumulatively discredit the claim of the proponent of the evidence. The conflicts in the evidence … weakened the merit of his case and proved fatal to his claim."

In light of these principles, the clear contradiction between the Defendant's testimony and that of DW1 on a material aspect of the case significantly undermines the credibility of their evidence. The inconsistency is not minor or peripheral, but one that strikes at the root of the Defednats case, and as such, I do not find their account reasonably probable or worthy of credit.

Further contradictions came to light when DW1 was asked about reporting sales to the Defendant:

Q: Did you report your sales of the fertilizer to the Defendant

A; Yes my lord.

Q: So I put it to you that you reported to Kweku Addai (Defendant) because he asked you to sell the fertilizer on his behalf for the Plaintiff.

A: Yes, my Lord, I was selling on behalf of Kweku Addai for the Plaintiff.

Q: How many bags of fertilizer did you sell on behalf of the Defendant for the Plaintiff
A: I cannot tell the number of bags I sold?

By his own admission, DW1 confirmed that he sold fertilizer on behalf of the Defendant. However, he was unable to specify the number of bags sold, which raises significant concerns about the integrity of the transactions and suggests a lack of proper accountability. This failure, coupled with the evasive stance adopted by both the Defendant and DW1, points to a deliberate attempt to conceal the extent of their involvement in the sale of the fertilizer.

After a careful analysis of the evidence, I find as a fact that the Defendant and his representative, DW1, sold a substantial quantity of fertilizer belonging to the Plaintiff, which had been stored at their facility and was under their control. The testimony of the Defendant and his witness, Kwesi Baako (DW1), is riddled with material inconsistencies, contradictions, and outright denials of previously sworn testimony and written statements. These discrepancies severely undermine their credibility and cast significant doubt on the veracity of their account.

It is clear that the Defendant has intentionally sought to mislead the court, rendering his defense unreliable and devoid of probative value. His attempt to deny liability is entirely unsupported by the evidence on record, and his credibility has been thoroughly discredited. Consequently, the court finds his testimony to be unworthy of belief and lacking in any evidential weight.

CONCLUSION

Having established that the Plaintiff initially stored 700 bags of fertilizer at the Defendant's premises, and that he has personally accounted for the sale of 354 bags, with confirmation of receipt of GH¢9,710.00 for the sale of 121 out of 346 bags sold at GH¢80

per bag by the Defendant and his representative, the legal burden shifts to the Defendant to account for the remaining 222 bags. These bags were under the exclusive control and possession of the Defendant. The Defendant's failure to provide an account for the remaining 222 bags renders him liable for their loss. Accordingly, the Defendant is indebted to the Plaintiff in the sum of GH¢17,760.00, representing the value of 222 bags of fertilizer, and judgment is hereby entered in favor of the Plaintiff.

COST:

Costs are awarded at the discretion of the Court, guided by considerations of fairness, reasonableness, and the circumstances of the case. In the exercise of this discretion, the Court has taken into account the protracted nature of the proceedings, the frequency of adjournments occasioned, the volume and complexity of the processes filed, and the fact that both parties were at all material times represented by Counsel. In the premises, the Court is satisfied that an award of costs is warranted. Accordingly, costs are assessed and awarded in the sum of GH¢4,000.00 in favour of the Plaintiff against the Defendant.

(SGD)

H/W MAXWELL OFORI KPODO

(DISTRICT COURT MAGISTRATE)